

25STCV20553 25STCV20553

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-29

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Case Number: 25STCV20553 Hearing Date: July 29, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

JUSTIN YIM,

Plaintiff,

vs.

INEOS AUTOMOTIVE

AMERICAS, LLC,

Defendant.

Case No.:

25STCV20553

Hearing Date:

July 29, 2026

Hearing Time: 10:00 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF EVA IBARRA'S NOTICE OF MOTION AND
MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

Background

On

July 11, 2025, Plaintiff Justin Yim ("Plaintiff") filed this lemon law action against Defendant INEOS Automotive Americas, LLC ("INEOS"), alleging two causes of action for (1) violation of Civil Code section 1793.2(d) and (2) breach of implied warranty of merchantability.

On

March 13, 2026, Plaintiff filed a notice of settlement.

Plaintiff

now moves for an award of attorney fees, costs, and expenses. INEOS opposes. Plaintiff replied.

Evidentiary

Objections

The Court rules on

INEOS's evidentiary objections as follows:

Objection Nos. 1-3: overruled[1]

The Court notes that

INEOS also included the entirety of Plaintiff's counsel's verified time entries and presents line-by-line objections. However, these do not appear to be evidentiary objections. Rather, they are arguments about what warrants a reasonable billing entry. Accordingly, the Court will not rule on the arguments as if they were evidentiary objections and discusses the substantive arguments below.

Legal

Standard

A. Costs

Pursuant

to Code of Civil Procedure section 1032, subdivision

(b), “[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” “‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” ((Id., § 1032, subd. (a)(4).)

Costs

recoverable under section 1032 are restricted to

those that are both reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc., § 1033.5, subds. (c)(2)-(3).) Costs

“merely convenient or beneficial” to the preparation of a case are disallowed.

(Code Civ. Proc., § 1033.5, subd. (c)(2); see *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 [expenses for

attorney meals incurred while attending local depositions not “reasonably necessary”].)

“A

‘verified memorandum of costs is prima facie evidence of [the] propriety’ of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” ((*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486-1487.) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” ((*Ladas v. California State Auto. Assn.*, *supra*, 19 Cal.App.4th at p. 774.) Costs otherwise allowable as

a matter of right may be disallowed if the court determines they were not reasonably necessary, and the court has power to reduce the amount of any cost item to an amount that is reasonable. (See

Perko’s Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 245 [finding that “the intent and effect of section 1033.5, subdivision (c)(2) is to

authorize a trial court to disallow recovery of costs, including filing fees, when it determines the costs were incurred unnecessarily”].)

B. Attorney

Fees

“Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter, [Sale Warranties §§ 1792 et. seq.,] or under an implied or express warranty or service contract may bring an action for the recovery of damages.” (Civ. Code, § 1794, subd. (a).)

“If the buyer prevails in an action under [Civil Code section 1794], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) The award of attorney fees is mandatory, to “provide[] injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible.” ((Reynolds v. Ford Motor Co. (2020) 47 Cal.App.5th 1105, 1111-1112 [“By providing for a mandatory award of attorney fees . . .”].)

To calculate fees, the lodestar method is used. “[T]he court tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work,” plus any reasonable fees a party incurred in filing the motion. ((Marshall v. Webster (2020) 54 Cal.App.5th 275, 285.) This is “an objective, nonarbitrary, and easy to administer calculation of attorney fees” because it fixes the fees “at the fair market value for the legal services provided.” ((Reynolds v. Ford Motor Co., supra, 47 Cal.App.5th at p. 1117.) This “approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary.” (Ibid.)

“[T]he court’s discretion in awarding attorney fees is ... to be exercised so as to fully compensate counsel for the prevailing party for services reasonably provided to his or her client.” ((Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395.) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys’ efforts are unorganized or duplicative. ((Serrano v. Unruh (1982) 32 Cal.3d 621, 635, fn. 21.) “[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Bd. of Trustees of California State Univ., supra, at p. 396.)

Discussion

Plaintiff requests a total award of \$28,841.36, comprising of attorney fees in the amount of \$24,030.00, “an additional amount of \$1,800.00 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion,” and costs in the amount of \$3,011.36. (Notice of Mot., 2:1-2.)

A. Costs

Plaintiff seeks costs in the amount of \$3,011.36. INEOS objects, contending that the appropriate award should be nothing.

INEOS contends that “Plaintiff’s Memorandum of Costs was filed prematurely. California Rules of Court, rule 3.1700 permits a prevailing party to seek costs only after entry of judgment or dismissal. Here, Plaintiff did not request dismissal until two months after filing the Memorandum of Costs. Accordingly, Plaintiff’s Memorandum of Costs was procedurally defective because it was filed before Plaintiff obtained prevailing party status and before any dismissal had been entered.” (Opp., 15:3-8.)

Plaintiff rebuts this assertion, contending that “Defendant’s challenge to Plaintiff’s costs is directed at the wrong procedure. Section 1794(d) authorizes the prevailing buyer to recover the costs and expenses reasonably incurred in the commencement and prosecution of the action, and those costs are

recoverable as part of this motion.” (Reply, 10:13-16.) Plaintiff further asserts that “[b]ecause the memorandum of costs was submitted in support of this motion, and before any dismissal was entered, it was not a post-judgment cost bill governed by Code of Civil Procedure sections 1032 and 1034 and California Rules of Court, rule 3.1700. Defendant’s argument that the memorandum of costs was premature therefore misapprehends the basis for recovery. Plaintiff seeks its costs under Section 1794(d) as part of this motion, and the timing rule for a separate memorandum of costs does not limit that recovery.” (Reply, 10:18-24.)

California Rules of Court rule 3.1700(a)(1) provides that “[a] prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” Civil Code section 1794, subdivision (d) is a fee-shifting statute which provides that “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

The Court does not wholly agree with Plaintiff’s assertion that Civil Code section 1794, subdivision (d) overrides the procedural requirements of California Rules of Court, rule 3.1700. In a recent lemon law case, *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1159, the Court of Appeal expressed that “[a] notice of motion to strike or tax costs must be served and filed within 15 days after service of the bill of costs. (Cal. Rules of Court, rule 3.1700(b)(1).) FCA never challenged Tidrick’s costs bill, thus waiving any objection.” Thus, California Rules of Court, rule 3.1700 applies. However, the Court also finds that INEOS’s assertion that the costs must be denied for a procedural defect is too rigid. “[T]ime limitations pertaining to a memorandum of costs are not jurisdictional [citation], and the premature filing of a memorandum of costs is treated as ‘a mere irregularity at best’ that does not constitute reversible error absent a showing of prejudice. [Citations.] Rather, courts treat prematurely filed cost bills as being timely filed.” ((*Haley v. Casa Del Rey Homeowners Assn.* (2007) 153

Cal.App.4th 863, 880.) Accordingly, Plaintiff's request for costs is not procedurally barred.

Moreover, the time requirements of California Rules of Court, rule 3.1700 also apply to INEOS. California Rules of Court, rule 3.1700(b)(1) provides that "[a]ny notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum." Further, "[a]fter the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment." (Cal. Rules of Court, rule 3.1700(b)(4).) "[I]f a party to an action against whom cost is awarded neglects within the time specified in section 1033 to apply to the court to have the same taxed, he is deemed to have assented to the correctness and lawfulness of the items as claimed in the verified memorandum of costs as filed..." ((Jimenez v. City of Oxnard (1982) 134 Cal.App.3d 856, 859.) Plaintiff served the memorandum of costs on March 13, 2026 and INEOS filed its opposition to the costs on July 17, 2026. INEOS cannot assert that Plaintiff did not comply with the time requirements of California Rules of Court, rule 3.1700, while similarly failing to comply. Accordingly, INEOS's failure to file a motion to tax or strike costs within the statutory period deems INEOS's objections to Plaintiff's costs waived. Accordingly, Plaintiff's requested costs in the amount of \$3,011.36 are granted in their entirety.

B. Plaintiff's

Requested Hourly Rates are Reasonable

Two attorneys worked on this case. (Cha Decl., ¶ 14, Ex. B.) Lead counsel spent approximately 37.8 hours litigating and seeks an hourly rate of \$600. (Ibid.) The associate attorney spent approximately 4.5 hours litigating and seeks an hourly rate of \$300. (Ibid.) In support, Plaintiff's lead counsel attaches various minute orders where his rate of \$600 or \$550 has previously been approved. (Cha Decl., ¶¶ 16-21; Exs. D-J.)

INEOS contends that "Plaintiff offers no evidence that these rates reflect the prevailing market for attorneys litigating routine Song-Beverly actions in Los Angeles County, much less cases proceeding under the streamlined framework established by AB 1755. Instead, Counsel relies primarily on a handful of cherry-picked fee orders in which

courts declined to reduce the requested rates, while omitting the fact that many of those same courts nevertheless substantially reduced the overall fee awards... Nor does Plaintiff even address or attempt to substantiate how Ms. Lee's \$300 rates are reasonable for an associate who began practicing law just three months before this case was filed. Simply pointing to the firm's internal billing practices or prior fee requests does not satisfy Plaintiff's burden of proving the prevailing market rate. The relevant inquiry is what attorneys of comparable experience are actually paid in the local market—not what Counsel chooses to charge.” (Opp., 4:16-27.) INEOS cites to various Song-Beverly Act cases where requested rates were decreased, including two cases where the reductions were for Plaintiff's counsel.

INEOS also utilizes the Real Rate Report, asserting that “the reasonable hourly rates for lemon law cases should be \$401 per hour for partners and \$241 per hour for associates. This position is based on Defendant's experience in the field and a review of the Real Rate Report.” (Vasseghi Decl., ¶ 6, Ex. A.) INEOS's counsel explains that the Real Rate Report breaks rates into “First Quartile, Median, and Third Quartile categories” and “[g]iven the straightforward nature of this lemon law case, Defendant applied First Quartile rates. Accordingly, for Los Angeles litigation, the First Quartile rates are \$410 for partners and \$361 for associates. For litigation firms with 50 or less attorneys, the First Quartile rates are \$210 for partners and \$165 for associates. For partners with 21 or more years of experience in litigation, the First Quartile rates are \$270; and for associates with fewer than 3 years experience in litigation, the First Quartile rates are \$195. Averaging these objective market indicators results in reasonable hourly rates of approximately \$401 for partners and \$241 for associates.” (Ibid.)

In response, Plaintiff contends that “Defendant challenges the requested rates of \$600 per hour for Mr. Cha and \$300 per hour for Ms. Lee, but it does not rebut the evidence that these rates fall within the prevailing range for comparable counsel in Song-Beverly actions.” (Reply, 4:6-8.) Plaintiff asserts that “Defendant relies on two orders reducing Mr. Cha's rate, to \$275 in *Eunki Jang v. BMW* (23STCV16994) and to \$450 in *Jason Song v. Volkswagen* (25STCV07929). Two discretionary reductions do not establish the prevailing market rate, particularly where seven other judges of the same court have adopted a higher rate for the same attorney in the same type of litigation. The weight of that authority reflects the market, not the two orders Defendant selects.” (Reply, 4:21-27.) Plaintiff also asserts

that associate counsel, “Ms. Lee joined the firm in 2024 and was admitted to the California Bar in 2025. She billed only 4.5 hours in this matter, all under Mr. Cha’s supervision. Her \$300 rate is not an untested figure: this court expressly adopted Ms. Lee’s \$300 rate as appropriate in *Jonny Kyung Hwan Park v. Volkswagen Group of America, Inc.* (Cha Decl. ¶18, Ex. F [Crowley, J., Jan. 29, 2026]). That Ms. Lee was admitted approximately three months before this case was filed does not undermine a modest associate rate, already approved by this court, for a small number of supervised hours.” (Reply, 4:28-5:7.) Moreover, Plaintiff contends that “Defendant’s reliance on the Wolters Kluwer Real Rate Report does not carry its burden either. The Real Rate Report aggregates billing data for general liability and product liability litigation drawn largely from defense-side and institutional engagements. It does not measure the prevailing market rate for contingent, plaintiff-side Song-Beverly specialists, which is the relevant inquiry.” (Reply, 5:18-23.)

The Court first notes

that the Real Rate Report provided is from 2022; notably, those rates reflect rates for three years before this case was filed and four years from the settlement of this case and litigation over fees. It cannot be deemed that these rates are the most current. Additionally, although INEOS presents cases in which fee awards have been reduced, Plaintiff similarly presents cases in which fee awards have been upheld. Given that “the trial court has broad authority to determine the amount of a reasonable fee” *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095), the Court finds the requested fee amounts reasonable. “[D]eclarations [that] indicate[] various state and federal courts ha[ve] previously awarded [counsel] attorney fees for comparable work at comparable hourly rates” is a relevant consideration when granting a requested fee. ((*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 473-474.) Here, Plaintiff’s counsel provides various instances of being awarded the same amount, or sufficiently similar amounts, in fees. Accordingly, the Court finds the requested fee amount of \$600 substantiated. Moreover, INEOS’s only example that charging \$300 for an associate attorney’s work is unreasonable is the Real Rate Report. However, given that this exact rate was awarded to Ms. Lee earlier this year, the Court finds this metric sufficient. Thus, the Court finds that the hourly rates requested by Plaintiff’s counsel are reasonable and commensurate with rates charged by attorneys with comparable skill and experience.

C. Plaintiff’s

Billing is Not Excessive

Plaintiff's counsel includes time entries to demonstrate the billed amounts. (Cha Decl., ¶ 14, Ex. B.) INEOS objects to Plaintiff's requested fees, and asserts that Plaintiff cannot meet the burden demonstrating "that the challenged time was both reasonably necessary to the litigation and actually incurred." (Opp., 7:24-27.) INEOS includes objections to Plaintiff's billing records, objecting almost line-by-line to the requested amounts. The Court reviewed the objections and will discuss the substantive arguments below.

INEOS first contends that Plaintiff's counsel "billed routine clerical and administrative tasks at attorney or paralegal rates such as client intake, arranging for court reporters, scheduling mediation, serving and filing documents, and calendaring deadlines." (Opp., 8:13-15.) INEOS further asserts that "Plaintiff cannot transform secretarial work into recoverable attorney time merely by having a partner perform it. More troubling, Defendant's own records demonstrate that several of these tasks were not merely clerical—they were actually performed by Counsel's legal assistant, Eun Suk Lee, while billed under Mr. Cha's initials at his \$600 hourly rate. For example, Counsel billed partner time for 'finalizing and serving initial documents' on October 6, 2025, yet Defendant's records show those documents were served by Counsel's legal assistant. (Vasseghi Decl. at ¶ 9; Ex. E.) Likewise, on October 8, 2025, Counsel billed partner time for conferring regarding mediation, but the only communication Defendant received that day came from Counsel's legal assistant. (Vasseghi Decl. at ¶ 9; Ex. F.) Plaintiff cannot transform secretarial work into recoverable attorney time simply by assigning it to a partner or billing it under a partner's name." (Opp., 8:20-9:2.)

INEOS similarly refutes billing entries by Plaintiff's counsel that are "billed at attorney rates for paralegal tasks such as document preparations, filling out templates, summarizing documents and files, and managing discovery." (Opp., 9:6-7.) INEOS asserts that "[e]ven assuming these tasks were compensable, they plainly did not require the experience or billing rate of the firm's highest-billing attorney. A reasonable client would never pay partner rates for preparing form pleadings, updating templates, organizing discovery, or processing routine filings." (Opp., 9:19-22.)

Plaintiff responds by

asserting that “[t]he work reflected in the challenged entries was performed under Mr. Cha’s direction and supervision, and Mr. Cha personally performed the substantive attorney work. To the extent any portion of that work was performed by non-attorney staff, Plaintiff does not seek to recover for it at Mr. Cha’s rate.” (Reply, 9:8-12.) Plaintiff also asserts that “[w]hile the burden shifted to Defendant to rebut the presumption of reasonableness with evidence, its Opposition and evidentiary objections consist largely of attorney argument and after-the-fact estimates of how long counsel should have taken on particular tasks. Such estimates are not evidence rebutting the presumption of credibility that attaches to a verified fee bill and supporting declaration, and Defendant offers no time records of its own counsel’s hours on comparable tasks.” (Reply, 9:14-20.)

Plaintiff also provides an additional declaration directly refuting the evidence presented and attached to INEOS’s counsel’s declaration. Plaintiff’s counsel attests that “Defendant contends that certain billing entries reflect work performed by my legal assistant, Mr. Eun Suk Lee, while billed at my hourly rate. I directed and supervised the work reflected in the challenged entries, and I personally performed the substantive attorney work on this matter. To the extent Mr. Lee performed portions of that work, Plaintiff does not seek to recover for his time at my hourly rate.” (Cha Decl., ¶ 3.) Accordingly, the Court finds that counsel’s declaration is sufficient to refute INEOS’s contention that Plaintiff’s counsel did not actually engage in the tasks.

Additionally, INEOS contends that Plaintiff’s counsel charged for paralegal and administrative tasks; however, it appears that entries have been reduced where some part of the described may not have reflected attorney time (see INEOS’s Obj., pp. 26-27).

INEOS next asserts that “Plaintiff seeks to recover as though counsel drafted sophisticated litigation documents from scratch when the evidence demonstrates precisely the opposite. Counsel relied heavily on standardized templates that have been recycled across numerous Song-Beverly actions filed by the firm. Comparison of these documents demonstrates that the overwhelming majority of the language is identical from case to case, requiring only ministerial modifications such as substituting the client’s name, vehicle information, and alleged repair history.” (Opp., 9:26-10:3.)

Plaintiff responds, asserting that “even when using templates, counsel must still adapt them to the unique facts of each case. Cases are not identical, and the use of standardized forms does not eliminate the need for case-specific research and tailoring. In this matter, Plaintiff’s counsel was required to thoroughly analyze the specific vehicle at issue and tailor the Complaint and discovery requests to the unique circumstances of the case. Defendant’s hindsight judgment in assigning ‘acceptable hours’ to these tasks is arbitrary and unsupported.” (Reply, 7:21-28.) INEOS does not cite to any authority demonstrating that templated work is non-compensable. The Court finds the requested hours reasonable, given that an attorney must assess the merits of a client’s causes of action before filing a lawsuit.

INEOS also asserts that “numerous billing entries are contradicted by the record and demonstrate that Plaintiff’s counsel has overstated the time purportedly spent on routine litigation tasks.” (Opp., 10:26-27.) INEOS points out that “[f]or example, Mr. Cha and Ms. Lee each billed time for ‘defending’ Plaintiff’s deposition, resulting in a combined total of three hours. However, the deposition transcript confirms that only Mr. Cha appeared on behalf of Plaintiff. The deposition commenced at 1:01 p.m. and concluded at 2:33 p.m., meaning the actual deposition lasted approximately one-and-a-half hours.” (Opp., 10:27-11:3.) Looking at Plaintiff’s counsel’s verified time entries, he charged 2.00 hours for preparing for and defending the deposition, whereas Ms. Lee charged 1.00 hours for preparing for and defending the deposition. Although Ms. Lee was not in attendance, there is no reason for the Court to doubt that she prepared for the deposition and collaborated with or presented her findings to lead counsel, Mr. Cha. Moreover, INEOS picks out the case management conference as another inflated billed time entry because Ms. Lee “billed a full hour for a proceeding in which she participated for fewer than 15 minutes.” In the verified time entries, it appears that Ms. Lee did indeed bill 1.00 hours, but this was billed as “[p]repare for and attend Case Management Conference.” (Cha Decl., Ex. B.) There is nothing indicating that counsel did not spend 45 minutes preparing for the conference. Based on the examples pulled, the Court declines to reduce the billed hours based on INEOS’s assertions that the time is inflated, considering that “the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Bd. of Trustees of California State Univ., *supra*, 132 Cal.App.4th at p. 396.)

Lastly, INEOS contends that "Plaintiff's fee request must be reduced because Counsel seeks compensation for excessive, duplicative, and routine work that was neither reasonably necessary nor reasonably billed. Under the lodestar method, the Court must award only those fees that are reasonably incurred for the prosecution of the action." (Opp., 11:27-12:2.) INEOS asserts that "the billing records demonstrate that Counsel routinely bills substantial time for tasks involving standardized Song-Beverly litigation materials that experienced lemon law attorneys encounter repeatedly in virtually every case." (Opp., 12:5-7.) Moreover, INEOS finds that "Plaintiff's billing is particularly unreasonable given the straightforward nature of the case and the limited discovery conducted before settlement." (Opp., 12:16-17.) INEOS's assertions here have been addressed above. Plaintiff's counsel's time entries do not appear to be unreasonable.

D. A Negative Multiplier is Not Warranted

INEOS requests that the Court apply a negative multiplier to this case. INEOS contends that "[t]he litigation presented no novel legal issues, no unsettled statutory interpretation questions, and no complex factual disputes. Counsel did not demonstrate any specialized skill beyond filing a form complaint and serving standard lemon law documents. Nothing about this matter required extraordinary advocacy or legal acumen warranting an enhanced fee. To the contrary, as discussed above, the billing records reflect a pattern of inefficiency, excessive delegation to senior attorneys, inflated billing entries, and reliance on recycled templates." (Opp., 14:5-10.)

Plaintiff finds INEOS's request unwarranted, stating that "[a] negative multiplier is appropriate only where the lodestar itself overstates the reasonable value of the work performed. That is not the case here. The lodestar reflects a modest number of hours, reasonably billed, on a matter that counsel prosecuted from filing through mediation." (Reply, 9:27-10:2.)

"Once the court has fixed the lodestar, it may increase or decrease that amount by applying a positive or negative 'multiplier' to take into account a variety of other factors." (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819, 833.) The court will consider "(1) the novelty and difficulty of the

questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. [Citation.] The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” ((Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

The Court believes that a negative multiplier is not warranted here. Although the case involves litigation that Plaintiff’s counsel regularly engages in, the fees requested by Plaintiff’s counsel are already in line with the market rate. Plaintiff’s counsel also took this case on contingency. The Court finds a lodestar multiplier—positive or negative—is unwarranted in a straightforward case, such as here, where the billing records appear reasonable and not overinflated. Accordingly, the Court grants the motion in its entirety.

Conclusion

Based on the foregoing, Plaintiff’s request for attorney fees and costs is GRANTED in the total amount of \$28,841.36, comprising \$25,830 for attorney fees and \$3,011.36 for costs.

Plaintiff is ordered to provide notice of this Order.

DATED: July 29, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court

[1] Regarding objection no. 1, although paragraph 14 of the Cha declaration does not describe

the experience level of attorneys Cha and Lee, attorney Cha does indicate in paragraph 1 of his declaration that he is the managing attorney of his firm Alex Cha & Associates, and he provides numerous examples of his work on similar cases. The opposition provides the information regarding attorney Lee's experience, namely three months as a new attorney. As discussed below, the Court does not find the rate charged for her time to be unreasonable.